

HOUSE No. 3477

The Commonwealth of Massachusetts

PRESENTED BY:

Marjorie C. Decker

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to clean lighting and appliance efficiency standards.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>1/17/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/10/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>2/24/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>3/14/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>5/8/2025</i>
<i>Estela A. Reyes</i>	<i>4th Essex</i>	<i>5/28/2025</i>

HOUSE No. 3477

By Representative Decker of Cambridge, a petition (accompanied by bill, House, No. 3477) of Marjorie C. Decker, James B. Eldridge and Natalie M. Higgins relative to lighting and appliance efficiency standards. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to clean lighting and appliance efficiency standards.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 2 of Chapter 21H of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the definition of “Closure” the following
3 definition:-

4 “Compact fluorescent lamp”, means a compact low-pressure, mercury-containing,
5 electric-discharge light source in which a fluorescent coating transforms some of the ultraviolet
6 energy generated by the mercury discharge into visible light, and includes all of the following
7 characteristics: (i) One base (end cap) of any type, including, but not limited to, screw, bayonet,
8 two pins, and four pins; (ii) Integrally ballasted or non-integrally ballasted; (iii) Light emission
9 between a correlated color temperature of 1700K and 24000K and a Duv of +0.024 and -0.024 in
10 the International Commission on Illumination (CIE) Uniform Color Space (CAM02-UCS); (iv)
11 All tube diameters and all tube lengths; and (v) All lamp sizes and shapes for directional and

nondirectional installations, including, but not limited to, PL, spiral, twin tube, triple twin, 2D, U-bend, and circular.

SECTION 2. Said section 2 of said chapter 21H, as so appearing, is hereby further amended by inserting after the definition of “Landfill” the following definition:-

“Linear fluorescent lamp”, means a low-pressure, mercury-containing, electric-discharge light source in which a fluorescent coating transforms some of the ultraviolet energy generated by the mercury discharge into visible light, and includes all of the following characteristics: (i) Two bases (end caps) of any type, including, but not limited to, single-pin, two-pin, and recessed double contact;(ii) Light emission between a correlated color temperature of 1700K and 24000K and a Duv of +0.024 and -0.024 in the CIE CAM02-UCS;(iii) All tube diameters, including, but not limited to, T5, T8, T10, and T12; (iv) All tube lengths from 0.5 to 8.0 feet, inclusive; and (v) All lamp shapes, including, but not limited to, linear, U-bend, and circular.

SECTION 3. Said section 2 of said chapter 21H, as so appearing, is hereby further amended by striking out the definition of “Mercury-added lamp”.

SECTION 4. Section 6J of Chapter 21H of the General Laws, as appearing in the 2020 Official Edition, is hereby amended by striking out paragraph (1) of subsection (d) and inserting in place thereof the following paragraph:-

(d)(1) On and after January 1, 2027, no person shall offer for final sale or distribute in this state as a new manufactured product a screw or bayonet base type compact fluorescent lamp, a pin-base type compact fluorescent lamp, or a linear fluorescent lamp.

SECTION 5. Said section 6J of said chapter 21H, as so appearing, is hereby further amended by striking out paragraph (2) of subsection (d).

SECTION 6. Said section 6J of said chapter 21H, as so appearing, is hereby further amended by adding the following 11 subsections:-

(k) Paragraphs (1) and (2) of subsection (d) do not apply to a lamp designed and marketed exclusively for image capture and projection, including: (i) photocopying; (ii) printing, directly or in preprocessing; (iii) lithography; (iv) film and video projection; and (v) holography.

(l) Paragraphs (1) and (2) of subsection (d) do not apply to a lamp that has a high proportion of ultraviolet light emission and is one of the following: (i) a lamp with high ultraviolet content that has ultraviolet power greater than two milliwatts per kilolumen (mW/klm); (ii) a lamp for germicidal use, such as the destruction of DNA, that emits a peak radiation of approximately 253.7 nanometers; (iii) a lamp designed and marketed exclusively for disinfection or fly trapping from which either the radiation power emitted between 250 and 315 nanometers represents at least 5 percent of, or the radiation power emitted between 315 and 400 nanometers represents at least 20 percent of, the total radiation power emitted between 250 and 800 nanometers; (iv) a lamp designed and marketed exclusively for the generation of ozone where the primary purpose is to emit radiation at approximately 185.1 nanometers; (v) a lamp designed and marketed exclusively for coral zooxanthellae symbiosis from which the radiation power emitted between 400 and 480 nanometers represents at least 40 percent of the total radiation power emitted between 250 and 800 nanometers; or (vi) any lamp designed and marketed exclusively for use in a sunlamp product, as defined in section 1040.20(b)(9) of

subchapter J of title 21 of the Code of Federal Regulations, as in effect on the date of enactment of this Act.

(m) Paragraphs (1) and (2) of subsection (d)) do not apply to a lamp designed and marketed exclusively for use in medical or veterinary diagnosis or treatment, or in a medical device.

(n) Paragraphs (1) and (2) of subsection (d) do not apply to a lamp designed and marketed exclusively for use in the manufacturing or quality control of pharmaceutical products.

(o) Paragraphs (1) and (2) of subsection (d) do not apply to a lamp designed and marketed exclusively for spectroscopy and photometric applications, such as UV-visible spectroscopy, molecular spectroscopy, atomic absorption spectroscopy, nondispersive infrared (NDIR), Fourier transform infrared (FTIR), medical analysis, ellipsometry, layer thickness measurement, process monitoring, or environmental monitoring.

(q) Paragraphs (1) and (2) of subsection (d) do not apply to a compact fluorescent lamp that is used to replace a lamp in a motor vehicle that was manufactured on or before January 1, 2020.

(r) The department may cause periodic inspections to be made of distributors or retailers in order to determine compliance with paragraphs (1) and (2) of subsection (d). The department shall investigate complaints received concerning violations of paragraphs (1) and (2) of subsection (d).

(s) If the department finds that any person has committed a violation of any provision of paragraphs (1) and (2) of subsection (d), the department shall issue a warning to such person.

Any person who commits a violation after the issuance of such warning shall be subject to a civil penalty, issued by the department, of up to one hundred dollars for each offense. Any further violations committed by such person after this second violation shall be subject to a civil penalty of not more than five hundred dollars for each offense. Each lamp offered, sold, or distributed in violation of paragraphs (1) and (2) of subsection (d), each violation shall constitute a separate offense, and each day that such violation occurs shall constitute a separate offense.

(t) If the department finds repeated violations have occurred, it shall report the results of such violations to the Attorney General. The Attorney General may institute proceedings to seek an injunction in state court to enforce the provisions of paragraphs (1) and (2) of subsection (d).

(u) The department may adopt such further regulations as necessary to ensure the proper implementation and enforcement of the provisions of paragraphs (1) and (2) of subsection (d).

SECTION 7. Section 2 of chapter 25B of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting the following definition:-

“Accessory”, means a component that can, at the discretion of the user, be readily added, removed, or replaced and that, when removed, will not prevent the fitting from fulfilling its primary function. Examples include aerators, hand-held shower assemblies, showerheads, and in-line flow controls.

SECTION 8. Said section 2 of said chapter 25B, as so appearing, is hereby further amended by inserting after the definition of “Ballast” the following definition:-

“Battery backup or uninterruptible power supply charger (UPS)” means a “battery backup or UPS” as defined in 1602(w) of Title 20 of the C.C.R.

SECTION 9. Said section 2 of said chapter 25B, as so appearing, is hereby further amended by inserting after the definition of “Boiler” the following 3 definitions:-

“Cation exchange”, means a process involving the reversible exchange of cations in solution with cations in a solid (cation exchange media).

“Computer Server”, means a computer that provides services and manages networked resources for client devices (e.g., desktop computers, notebook computers, thin clients, wireless devices, personal digital assistants, internet protocol telephones, other computer servers, or other network devices).

“Computer Server Power Supply Unit”, means a device that converts AC or DC input power to one or more DC power outputs for the purpose of powering a computer server and that is self-contained, physically separable from the motherboard and that connects to the system via a removable or hard-wired electrical connection.

SECTION 10. Said section 2 of said chapter 25B, as so appearing, is hereby further amended by inserting after the definition of “Compensation” the following definition:-

“Decorative gas fireplace”, means a vented fireplace, including appliances that are freestanding, recessed, zero clearance, log set, or a gas fireplace insert, that is fueled by natural gas or propane, is marked for decorative use only, and is not equipped with a thermostat or intended for use as a heater.

SECTION 11. Said section 2 of said chapter 25B, as so appearing, is hereby further amended by inserting after the definition of “F96T12 lamp” the following definition:-

“Gas fireplace”, means a decorative gas fireplace or a heating gas fireplace.

116 SECTION 12. Said section 2 of said chapter 25B, as so appearing, is hereby further
117 amended by inserting after the definition of “Hand-held showerhead” the following definition:-

118 “Heating gas fireplace”, means a vented fireplace, including appliances that are
119 freestanding, recessed, zero clearance, or a gas fireplace insert, that is fueled by natural gas or
120 propane and is not a decorative fireplace.

121 SECTION 13. Said section 2 of said chapter 25B, as so appearing, is hereby further
122 amended by inserting after the definition of “Lamp” the following definition:-

123 “Large battery charger system”, means a BCS (other than a battery charger system for
124 golf carts) with a rated input power of more than 2 kW.

125 SECTION 14. Said section 2 of said chapter 25B, as so appearing, is hereby further
126 amended by inserting after the definition of “Residential ventilating fan” the following
127 definition:-

128 “Residential water softener”, means a cation exchange water softener that is connected to
129 the water system with conventional plumbing fittings not exceeding 1.25 inches in nominal pipe
130 size, that is designed for residential use, and that is regenerated in place.

131 SECTION 15. Said section 2 of said chapter 25B, as so appearing, is hereby further
132 amended by inserting after the definition of “Standby power” the following definition:-

133 “State-regulated BCS”, means a state-regulated battery charger system as defined in §
134 1602(w) of Title 20 of the California Code of Regulations (C.C.R.).

SECTION 16. Section 5 of chapter 25B of the General Laws, as appearing in the 2020 Official Edition, is hereby amended by striking out clause (iv) of paragraph (10) and inserting in place thereof the following clause:-

(iv) the flow rate of residential kitchen faucets and replacement aerators shall not be greater than 1.2 gpm with optional temporary flow of 2.2 gpm at 60 psi when tested in accordance with the flow rate test procedure prescribed in Appendix S to Subpart B of Part of Title 10 of the Code of Federal Regulations;

SECTION 17. Said section 5 of said chapter 25B, as so appearing, is hereby further amended by striking out clause (vi) of paragraph (10) and inserting in place thereof the following clause:-

(vi) the flow rate of showerheads shall not be greater than 1.8 gpm at 80 psi when tested in accordance with the flow rate test procedure prescribed in Appendix S to Subpart B of Part 430 of Title 10 of the Code of Federal Regulations, effective on January 3, 2019.

SECTION 18. Said section 5 of said chapter 25B, as so appearing, is hereby further amended by striking out paragraph (15) and inserting in place thereof the following paragraph:-

(15) Commercial ovens included in the scope of the ENERGY STAR Program Requirements Product Specification for Commercial Ovens, Version 3.0, shall meet the qualification criteria of that specification.

SECTION 19. Said section 5 of said chapter 25B, as so appearing, is hereby further amended by striking out paragraph (16) and inserting in place thereof the following paragraph:-

(16) Commercial dishwashers included in the scope of the ENERGY STAR Program Requirements Product Specification for Commercial Dishwashers, Version 3.0, shall meet the qualification criteria of that specification.

SECTION 20. Said section 5 of chapter 25B of the General Laws, as appearing, is hereby further amended by adding after subsection (20) the following new subsections:

(21) Computer Server Power Supply Units for computer servers included in the scope of the ENERGY STAR Program Requirements Product Specification for Computer Servers, Version 4.0, shall meet the certification criteria of that specification.

(22) Gas fireplaces shall comply with the following requirements:

Gas fireplaces shall be capable of automatically extinguishing any pilot flame when the main gas burner flame is extinguished;

Gas fireplaces must prevent any ignition source for the main gas burner flame from operating continuously for more than seven days from last use of the main burner;

Heating gas fireplaces shall have a fireplace efficiency greater than or equal to 50% when tested in accordance with CSA P.4.1-15, "Testing Method for Measuring Fireplace Efficiency" as amended or revised.

(23) Large battery charger systems and battery backup or UPS systems shall meet the requirements of § 1605.3(w) v of Title 20 of the C.C.R. and compliance with those requirements shall be as measured in accordance with test methods prescribed in § 1604(w) of those regulations.

175 The rules shall define “large battery charger system” and “battery backup or
176 uninterruptible power supply charger (UPS)” to have the same meaning as set forth in § 1602(w)
177 of Title 20 of the C.C.R.

178 The referenced portions of the C.C.R. shall be those adopted on or before the effective
179 date of this Act. However, the Commissioner shall have authority to amend the rules so that the
180 definitions of “state-regulated battery charger system”, “large battery charger system”, and
181 “battery backup or UPS” and the minimum efficiency standards for large battery charger system
182 and battery backup or UPS conform to subsequently adopted modifications to the referenced
183 sections of the C.C.R.

184 (24) Residential water softeners shall comply with the following requirements:

185 Residential water softeners shall comply with NSF/ANSI 44, Residential Cation
186 Exchange Water Softeners, and shall meet the criteria therein for an efficiency rated water
187 softener;

188 Residential water softeners shall have a rated salt efficiency of not less than 4000 grains
189 of total hardness exchange per pound of salt, based on sodium chloride equivalency;

190 Residential water softeners’ water consumption during regeneration shall be not greater
191 than 4 gallons of water per 1000 grains of hardness removed during the service cycle.

192 SECTION 21. Said section 5 of chapter 25B of the General Laws, as appearing, is
193 hereby further amended by adding the following 2 paragraphs:-

194 On or after January 1, 2027, no new commercial dishwasher, commercial oven, computer
195 server power supply units, faucet, gas fireplace, residential water softener, showerhead, or state-

196 regulated battery charger system may be sold or offered for sale, lease, or rent in the state unless
197 the new product meets the requirements of the standards provided in this section.

198 One year after the date upon which the sale or offering for sale of certain products
199 becomes subject to the requirements of paragraph (a) of this section, no such products may be
200 installed for compensation in the state unless the efficiency of the new product meets or exceeds
201 the efficiency standards provided in this section.